

Negligence
Actionable Damage
Duty of Care



Negligence Overview

What is negligence?

“A breach of a legal duty to take care which results in damage to the claimant.” (W&J)

Three elements:

1. D owed C a duty of care;
2. D breached that duty;
3. D's breach caused damage which is not too remote.

A (very) brief history of negligence



❑ Negligence was ‘fragmented’ – a series of specific duties in specific contexts

- *Gladwell v Steggall* (1839) – Duty of doctor to patient
- *Smith v Baker & Sons* (1891) – Duty of employer to employee
- *Blacker v Lake & Elliot* (1912) – D not liable when he sold product to A which then, because of defect, injured C

❑ *Donoghue v Stevenson* [1932] AC 562

- Lord Atkin: “You must take reasonable care to avoid acts or omissions which you can reasonably foresee would be likely to injure your neighbour.”
- Lord Macmillan: “The grounds of action may be as various and manifold as human errancy ... The categories of negligence are never closed.”



Actionable Damage

Rothwell v Chemical & Insulating Co Ltd [2008] AC 281



- ❑ Employees exposed to asbestos dust and developed pleural plaques as a result. Pleural plaques not harmful. Symptomless changes with no foreseeable consequences.
- ❑ Lord Hope: “an injury which is without any symptoms at all because it cannot be seen or felt and which will not lead to some other event that is harmful has no consequences that will attract an award of damages. Damages are given for injuries that cause harm, not for injuries that are harmless.” [49]

Dryden & Ors v Johnson Matthey PLC [2018] UKSC 18



Facts:

- ❑ Cs developed platinum salt sensitization due to D's negligence.
- ❑ Platinum salts are not encountered in everyday life, so for ordinary people this would cause no problems at all.
- ❑ However, for the Cs, it meant they could not longer do any work in the "red zones" of the factory.

Dryden & Ors v Johnson Matthey PLC [2018] UKSC 18

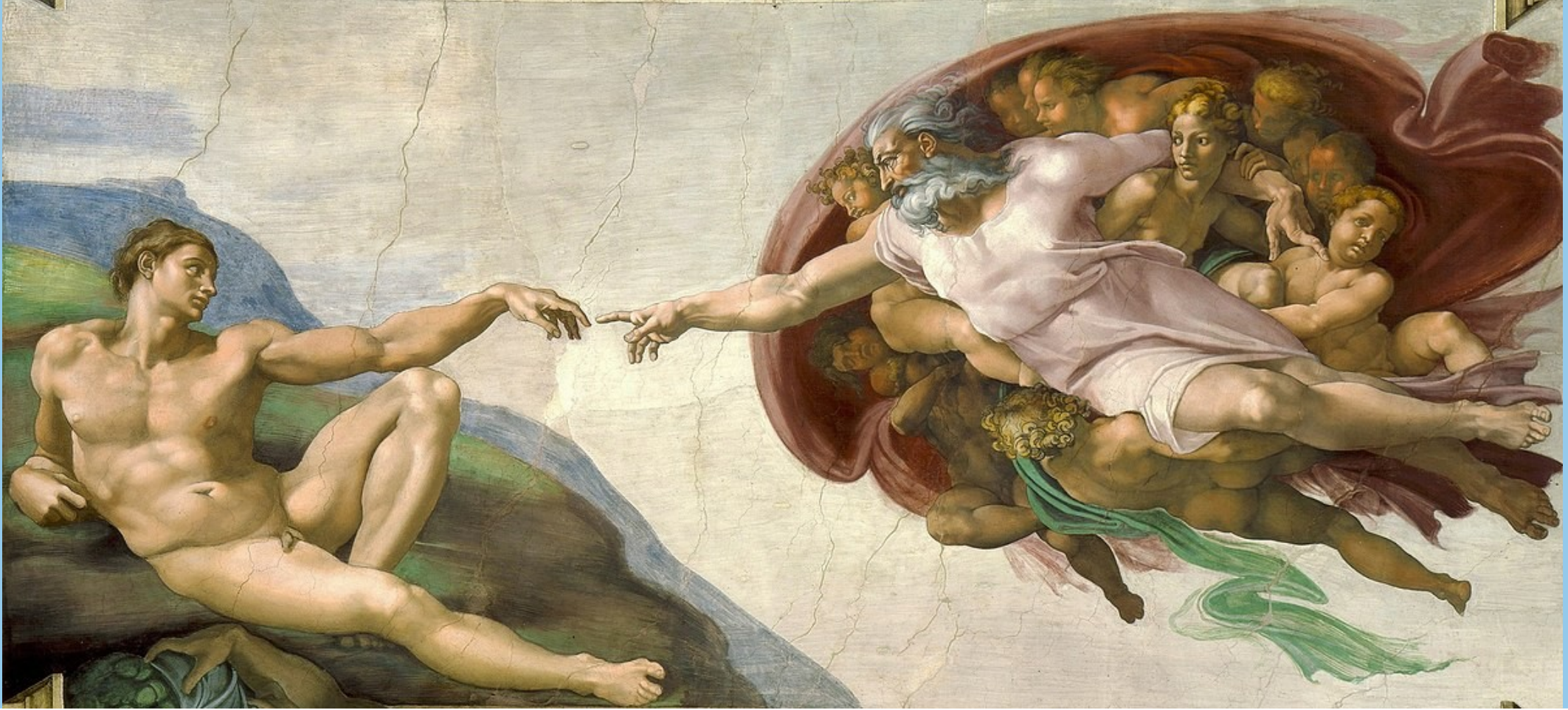


“What has happened to the claimants is that their bodily capacity for work has been impaired and they are therefore significantly worse off. They have, in my view, suffered actionable bodily damage, or personal injury, which, given its impact on their lives, is certainly more than negligible.” (Lady Black, [40])

Dryden & Ors v Johnson Matthey PLC [2018] UKSC 18

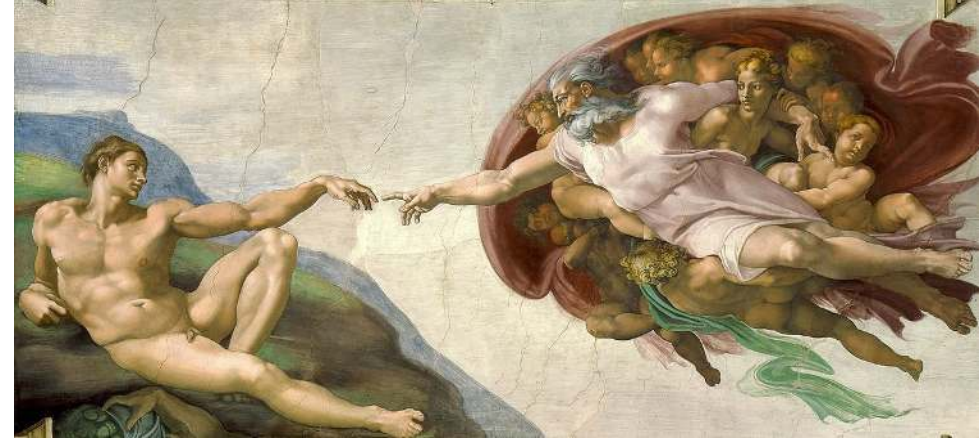


“Suppose that the claimants were coffee tasters, employed because they had the ability to distinguish different flavours and qualities of coffee, by smell and taste. Suppose further that, through negligence, their sense of smell or taste became impaired in a way which would be of absolutely no consequence to anyone who was not employed in this particular role, but meant that they could no longer do their jobs and had to seek other employment. I venture to suggest that there would be little difficulty in accepting that the changes to their bodies were actionable personal injury.” (Lady Black, [41])



Duty of Care Overview

The concept of a duty of care



- ❑ “A man is entitled to be as negligent as he pleases towards the whole world if he owes no duty to them.” (Lord Esher MR, *Le Lievre v Gould* (1893))
- ❑ “It is never sufficient simply to ask whether A owes B a duty of care. It is always necessary to determine the scope of the duty by reference to the kind of damage from which A must take care to hold B harmless.” (Lord Bridge, *Caparo Industries v Dickman* [1990] 2 AC 605)

Duty as a control device



Three key questions:

1. Was the damage to someone in C's position reasonably foreseeable?
2. Was what D did an act or an omission?
3. Which aspect of the claimant's interest was affected?

1. Reasonably foreseeable?



Haley v London Electricity Board Respondents [1965] AC 778

- ❑ Facts: D's worker dug a trench along the pavement, laying a hammer across each end, to stop people falling in. C was blind, didn't realise there was a trench, and fell in.
- ❑ Held: C was owed a duty of care as it was reasonably foreseeable that a blind person would be walking along the pavement.

2. Act or omission?

Topp v London Country Bus [1993] 1 WLR 976

- ❑ D left bus with keys in ignition
- ❑ TP stole bus and killed C
- ❑ Held: D not liable



3. Type of interest?

Simple

- ✓ Physical injury
- ✓ Property damage

Complex

- ❖ Economic loss
- ❖ Psychiatric injury

A simple rule

You owe others a duty of care not to:

do **acts**

which **foreseeably**

cause **physical injury** or **property damage**.

Outside the simple rule

- ❑ No reasonable foreseeability = no duty
- ❑ Omission not act = complicated
- ❑ Damage not physical/property = complicated



Tort Poll 2A(i)

LAW OF TORT



Duty of Care: The Current Approach

Robinson v CC of West Yorkshire [2018] UKSC 4



Facts:

- ❑ Four plainclothes policemen planned to arrest a suspected drug dealer while he stood outside the bookmakers.
- ❑ Mrs Robinson was walking along the shopping street. As she passed the suspect, two policemen moved to arrest him and he resisted arrest.
- ❑ Mrs Robinson was knocked over by the suspect backing into her, and the men fell on top of her. She brought a claim in negligence for personal injury.

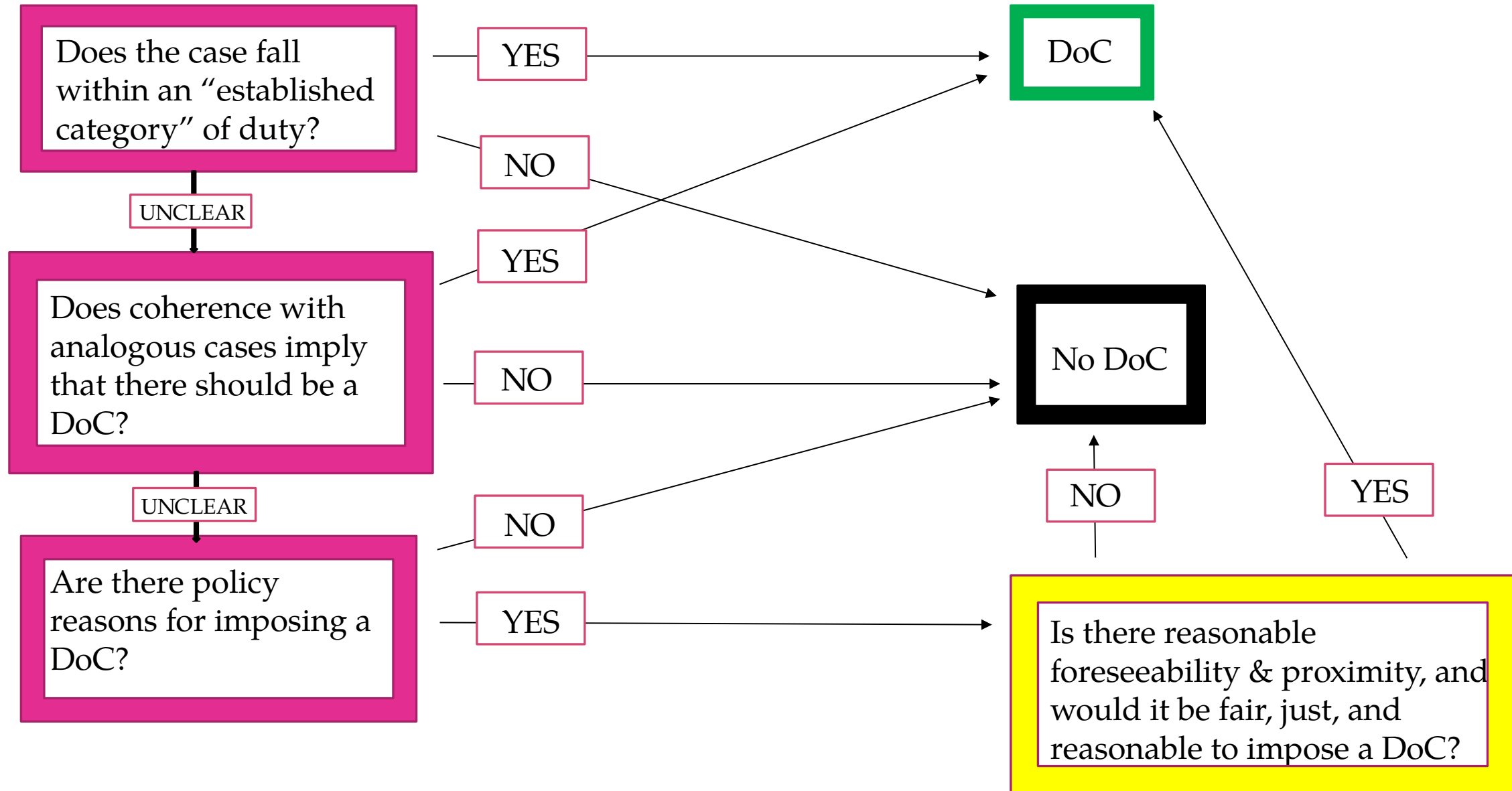
Robinson v CC of West Yorkshire [2018] UKSC 4



The approach to determining a duty of care:

1. Does the case fall within an “established category” of DoC? (N.b. most cases stop here!)
2. If the case is a novel one, does coherence with analogous cases imply that there should be a DoC?
3. Do ‘policy reasons’ imply there ought to be a duty of care — would it be ‘fair, just, and reasonable’ to impose one?

Establishing a Duty of Care — Flowchart



Robinson v CC of West Yorkshire [2018] UKSC 4



“In the ordinary run of cases, courts consider what has been decided previously and follow the precedents ... In cases where the question whether a duty of care arises has not previously been decided, the courts will consider the closest analogies in the existing law, with a view to maintaining the coherence of the law and the avoidance of inappropriate distinctions. They will also weigh up the reasons for and against imposing liability, in order to decide whether the existence of a duty of care would be just and reasonable.”
(Lord Reed, [29])

Robinson v CC of West Yorkshire [2018] UKSC 4



Held:

- Applying the existing case law, the police are “under a duty of care to protect an individual from a danger of injury which they have themselves created” [70]
- “[I]t was reasonably foreseeable that if the arrest was attempted at a time when pedestrians ... were close to [the suspect], they might be knocked into and injured in the course of his attempting to escape. That reasonably foreseeable risk of injury was sufficient to impose on the officers a duty of care towards the pedestrians in the immediate vicinity when the arrest was attempted, including Mrs Robinson.” [74]

Darnley v Croydon NHS Trust [2018] UKSC 50



Facts:

- ❑ C went to hospital with head injury. Incorrectly told by receptionist that waiting time was 4-5 hours. Not told that triage would happen within 30 minutes.
- ❑ C went home. His condition deteriorated. By the time he went back to hospital, he suffered permanent brain damage.
- ❑ Had the receptionist told him triage would be 30 minutes, he would have stayed, and would not have suffered the damage.

Darnley: lower courts



High Court (*Darnley* [2015] EWHC 2301):

- ❑ Receptionists at hospitals owe no duty of the care to members of the public to give accurate advice about waiting times.
- ❑ In any event, Mr Darnley's decision to leave broke the chain of causation.

Court of Appeal agreed (*Darnley* [2017] EWCA Civ 151)

Darnley v Croydon NHS Trust [2018] UKSC 50



Held:

- ❑ Lower courts wrong.
- ❑ This fell within an established duty category and, as such, there was no need to consider if imposing a duty was fair, just and reasonable.
- ❑ The duty took effect from the moment C was 'booked in' at reception; there was no distinction between clinical and non-clinical staff.

Darnley v Croydon NHS Trust [2018] UKSC 50

“To my mind ... the present case falls squarely within an established category of duty of care. It has long been established that such a duty is owed by those who provide and run a casualty department to persons presenting themselves complaining of illness or injury and before they are treated or received into care in the hospital's wards. The duty is one to take reasonable care not to cause physical injury to the patient: *Barnett* [1969] 1 QB 428”. (Lord Lloyd-Jones, [16])



Darnley v Croydon NHS Trust [2018] UKSC 50

“While it is correct that no authority has been cited in these proceedings which deals specifically with misleading information provided by a receptionist in an A & E department causing physical injury, it is not necessary to address, in every instance where the precise factual situation has not previously been the subject of a reported judicial decision, whether it would be fair, just and reasonable to impose a duty of care. It is sufficient that the case falls within an established category in which the law imposes a duty of care.”
(Lord Lloyd-Jones, [16])



Darnley v Croydon NHS Trust [2018] UKSC 50



Kent v Griffiths [2001] QB 36 considered:

- ❑ Ambulance Service liable for delay in responding to an emergency call — call handler had given misleading assurances that an ambulance would be arriving shortly.
- ❑ “In both cases, as a result of the provision of inaccurate information by non-medically qualified staff, there was a delay in the provision of urgently required medical attention with the result that serious physical injury was suffered.” (Lord Lloyd-Jones, [20])



Tort Poll 2A(ii)

LAW OF TORT